

SFIO vs. Adarsh Builders Ltd. & Ors.

Present: Sh. Neeraj Dev Gaur @ Bhim Singh Motsara, Advocates for the applicant/accused no.164.
Shri Pardeep Yadav, Sr. Prosecutor, SFIO.

This order shall dispose of an application filed on behalf of accused no. 164. It has been averred that the applicant is on anticipatory bail granted by this Court vide order dated 11.08.2020 and in terms of the said bail order dated 11.08.2020 the applicant has duly furnished the surety and also deposited her passport before the Court. It has been submitted that vide order 29.08.2023 this Court was pleased to permit the applicant to travel overseas to Malaysia from 22.10.2023 to 27.10.2023 and to Singapore from 27.10.2023 to 30.10.2023. The applicant has also filed an application IA No.21/2026 seeking return of her passport for the purpose of appearing before US Embassy for interview for US Visa, however the said application was withdrawn with liberty on as it became infructuous. It has been submitted that the applicant did not misuse the liberty graciously given by the Court and duly complied with the said order dated 29.08.2023. It has been submitted that the applicant is willing and desirous of traveling to Vietnam from 07.05.2026 (departure date) to 18.05.2026 (arrival date). The applicant seeks the permission of this Court to return his passport for aforementioned purpose and undertakes to return/re-doposit his passport before this Court within a period of one week after his return. Hence, it has been prayed that the application be allowed and the applicant be permitted to travel to Vietnam from 7.5.2026 to 18.5.2026 and directing release of original passport of the applicant lying before this court.

2. In reply to the said application, learned SFIO has filed the reply and has maintained that the accused no.164 is arrayed as an accused for the offence

under Section 58A of the Companies Act, 1956, under Section 74 (3), 76(A), 447 of Companies Act 2013, under Section 120-B read with 417, 418, 420 of IPC which are serious offences. Offences involve financial fraud, Non bailable offence and cognizable offence. He argued that the purpose of the visit of the applicant is for some ulterior motive. It has been argued that applicant is at flight risk and the said fact cannot be ignored.

3. I have heard learned counsel for applicant and learned SFIO and have gone through the case file carefully.

4. A minute perusal of application shows that the purpose of visiting Vietnam has been intentionally concealed by the applicant as the application does not specify the reason for the said visit. The applicant has failed to specify the very purpose of this visit which creates a ground for apprehension in the mind of Court that the arguments as advanced by ld. Prosecutor for SFIO are well founded and are not misconceived. Therefore finding no merits in the present application the application in hand is hereby dismissed. Papers be tagged with main case file and be put up on date fixed.

(Puneet Sehgal)
ASJ, Gurugram
UID No. HR-0183

Date of order: 17.04.2026

Santosh